

25STCV16733 25STCV16733

County: los-angeles

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Case Number: 25STCV16733 Hearing Date: June 23, 2026 Dept: 732

Estate of Deborah Shipp, et al. v. CJ Spa Group, Inc., et al.

Tuesday, June 23, 2026

CASE NUMBER: 25STCV15733

OPPOSED

Defendant CJ Spa Group Inc.'s Motions to Compel Further Responses to Form and Special Interrogatories from Plaintiff Joe Shipp

Facts: This is an action for negligence. The Complaint alleges as follows. Plaintiff Deborah Shipp ("Decedent") died following a medical emergency suffered on the premises of a spa operated by Defendant CJ Spa Group Inc. ("Defendant"), arising from their negligent supervision and maintenance of a sauna. (Complaint ¶¶ 8–14.) The present action is brought by Decedent's spouse and children as successors in interest, Joe Shipp, Joseph Shipp, Jerren Shipp, and Brittney Shipp. (Complaint ¶ 1.)

Procedural History: Plaintiffs filed the Complaint on May 30, 2025, alleging three causes of action:

Negligence

Premises Liability

Negligent Hiring, Supervision, & Retention

On June 4, 2026, this court denied Defendant's motion to compel further responses to requests for admission from Plaintiff Brittney Shipp.

On June 9, 2026, this court granted in part Defendant's motion to compel further responses to form and special interrogatories from Plaintiff Brittney Shipp, and granted Defendant's motion to deem matters admitted against Plaintiffs Joe and Jarren Shipp.

On June 11, 2026, this court granted in part Defendant's motion to compel further responses to requests for production from Plaintiff Brittney Shipp.

Defendant filed the present motions to compel further responses to form and special interrogatories from Plaintiff Joe Shipp on May 1, 2026.

Plaintiffs filed an opposition on June 9, 2026.

Defendant filed a reply on June 15, 2026.

Analysis:

MOTION TO COMPEL FURTHER

"Any party may obtain discovery . . . by propounding to any other party to the action written interrogatories to be answered under oath." (Code Civ. Proc., § 2030.010(a).) If a propounding party is not satisfied with the response served by a responding party, the former may move the court to compel further interrogatory responses. (Code Civ. Proc., § 2030.300; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.) The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party asserted objections that are either without merit or too general. (Code Civ. Proc., § 2030.300(a)(1)–(3); Sinaiko Healthcare Consulting, Inc., supra, 148 Cal.App.4th at 403.)

Defendant CJ Spa Group, Inc. ("Defendant") moves to compel further responses to Form Interrogatories No. 2.3, 2.4, 10.2, and 12.1, and Special Interrogatories No. 7, 118–123, 125, 126, 129–134, 140, 141, 144–153, 160, 163, 166, 169 and 172, from Plaintiff Joe Shipp.

The present motion conforms substantially to a motion previously brought by Defendant for further responses against Plaintiff Brittney Shipp. Though some interrogatories at issue in the prior motion are not at issue here, all of the interrogatories at issue in the present motion were at issue in the prior motion, save Form Interrogatory No. 10.2.

In its order on the prior motion to compel further responses to the same interrogatories, the court found the motions untimely except as to Form Interrogatory No. 12.1 and Special Interrogatories No. 49, 50, 66-75, and 82-86. The court ruled that further responses were required as to Form Interrogatory No. 12.1 and Special Interrogatories No. 66–74, and 82–86, limited in scope to illnesses or injuries of Decedent that occurred on or after June 1, 2024.

The same logic applies here. The declaration of Plaintiff's counsel denies that any agreement was reached concerning interrogatories other than Form Interrogatory No.12.1 and Special Interrogatories No. 49, 50, 66-75, and 82-86. (Ganji Decl. ¶ 7.) As set forth in the prior order, such testimony bears heavily on the motion as Defendant's basis for claiming the motion is timely consists of written memorializations of oral conferences which do not describe the discovery at issue and which are not subscribed by Plaintiff's counsel. Plaintiff in reply acknowledges the June 9 order, and seeks an order compelling further responses in conformity with the logic set forth there. (Reply at p. 3.) As Special Interrogatories No. 66-75 and 82-86 are not

at issue in the present motion, this means that Plaintiff has narrowed the scope of the motions to seek a further response to Form Interrogatory No. 12.1 alone. (Ibid.)

Form Interrogatory No. 12.1 asked Plaintiff to provide contact information for individuals who witnessed the “incident,” or heard or made statements on the scene of the incident, or any person Plaintiff claims has knowledge of the incident. (Separate Statement at pp. 4–5.) “Incident” is defined in the interrogatories as “the circumstances and events surrounding the alleged accident, injury, or other occurrence or breach of contract giving rise to this action or proceeding.” (O’Brien Decl. Exh. 12.)

Plaintiff responded as follows:

This request is objectionable to the extent it seeks information that is protected by privilege, privacy or attorney work product. Subject to the foregoing: After a reasonable and diligent search, unknown. This information is more available to Defendant as the patrons came to Defendant to report that Mrs. Shipp was in distress.

(Separate Statement at p. 5.)

Plaintiff’s response is internally inconsistent, and a further response is required. Plaintiff at once states that he has no knowledge of any percipient witnesses, and then states that “the patrons came to Defendant to report that Mrs. Shipp was in distress.” (Ibid.) Plaintiff thus purports to rely on knowledge of the incident, presumably derived in some manner from witnesses on the scene, in order to explain why he cannot provide information concerning witnesses.

Plaintiff may state that he lacks knowledge sufficient to answer, if such is in fact the case following “a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations.” (Code Civ. Proc. § 2030.220, subd. (c).) But “[i]f only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 782.) Here, Plaintiff’s response itself discloses some knowledge of the scene, but not how Plaintiff derives such knowledge, if not from the very people whom this interrogatory seeks to reveal. Thus a further response is required to this interrogatory.

Accordingly, the motion is GRANTED as to Form Interrogatory No. 12.1. The motion is otherwise DENIED as to the remaining Form and Special Interrogatories. 1

Sanctions

Statute provides that the court shall impose sanctions upon a party who unsuccessfully makes or opposes a motion to compel further response to interrogatories, requests for production of documents, or requests for admission, absent substantial justification otherwise. (Code Civ. Proc. §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).)

Defendant seeks \$424.01 per motion, representing a split of the total hours incurred on Defendant’s multiple discovery motions, plus two \$82.01 filing fees. (O’Brien Decl. ¶ 20.) Plaintiff, meanwhile, seeks \$3,500.00, representing five hours of attorney work at \$500 per hour. (Ganji Decl. ¶ 9.) No sanctions are awarded, as the parties have obtained only partial relief.

Superior Court of California

County of Los Angeles

Department 732

ESTATE OF DEBORAH SHIPP, et al.,

Plaintiffs,

v.

CJ SPA GROUP, INC., et al.,

Defendants.

Case No.: 25STCV15733

Hearing Date: June 23, 2026

[TENTATIVE] RULING RE:

Defendant CJ Spa Group Inc.'s Motions to Compel Further Responses to Form and Special Interrogatories from Plaintiff Joe Shipp

Defendant CJ Spa Group Inc.'s Motions to Compel Further Responses to Form and Special Interrogatories from Plaintiff Joe Shipp are GRANTED as to Form Interrogatory No. 12.1, and DENIED as to the remaining Form and Special Interrogatories. No sanctions are awarded. Further responses shall be provided within 20 days of this order.

Defendant to provide notice.

Dated: June 23, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court